

UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT

ELBERT PARR TUTTLE COURT OF APPEALS BUILDING
56 Forsyth Street, N.W.
Atlanta, Georgia 30303

David J. Smith
Clerk of Court

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January 07, 2026

MEMORANDUM TO COUNSEL OR PARTIES

Appeal Number: 25-13631-CC

Case Style: Citadel Securities LLC v. U.S. Securities and Exchange Commission, et al

Agency Docket Number: SR-IEX-2025-02

ADDITIONAL PAPER COPIES REQUIRED FOR ORAL ARGUMENT

Briefs

Pursuant to 11th Cir. R. 31-3, each party must send to the Court three additional paper copies of the party's brief(s) within seven days of the date of this notice. **The paper copies of briefs submitted by ECF filers must include the ECF docketing header from the electronically filed version of the brief.** The paper copies of briefs also must comply with all formatting requirements, including binding and cover requirements. *See, e.g.*, 11th Cir. R. 32-1, 32-2, and IOP 4 to FRAP 32.

Appendix

In addition, pursuant to 11th Cir. R. 30-1(d), all parties who filed an appendix must send to the Court three additional paper copies of the party's appendix. The paper copy of an appendix also must comply with all formatting requirements, including binding and cover requirements. *See, e.g.*, 11th Cir. R. 30-1(e) and IOP 1 to FRAP 30. Clerk's Note: ECF filers are encouraged to have the ECF docketing header from the electronically filed version of the appendix on the cover page for the paper copies of the appendix submitted to the Court.

Sealed Documents

Paper copies of sealed briefs and appendices should be submitted in a sealed envelope, and the face of the envelope should contain a conspicuous notation that it contains "DOCUMENTS UNDER SEAL" or substantially similar language.

Formatting Requirements: Briefs

The cover of the brief must clearly indicate the name of the party on whose behalf the brief is filed. Each copy must comply with FRAP, have a cover of durable quality (at least 90#) on both front and back sides, and be securely bound along the left-hand margin so as to insure that the

bound copy will not loosen or fall apart or the cover be detached by shipping and use. Exposed metal prong paper fasteners are prohibited on briefs. *See* 11th Cir. R. 32-2.

FRAP 32(a)(3) requires that briefs be bound in a "manner that is secure, does not obscure the text, and permits the brief to lie reasonably flat when open." In the Court's view, only spiral and wire binding permit briefs to lie flat when open. For that reason, although the Court does not require any particular type of binding, it prefers that parties file briefs which are either spiral- or wire-bound instead of comb-bound, velo-strip-bound, tape-bound, metal-fastener-bound, thermal-bound, or stapled. *See* IOP 4 to FRAP 32.

Formatting Requirements: Appendix

The paper appendix shall be reproduced on white paper by any duplicating or copying process capable of producing a clear black image, with a cover containing the information specified in 11th Cir. R. 28-1(a) and captioned "Appendix." The appendix shall be assembled with a front and back durable (at least 90#) white covering and shall be bound across the top with a secure fastener. Indexing tabs shall be affixed to the first page of each document in the appendix to identify and assist in locating the document. An index identifying each document contained in the appendix and its tab number shall be included immediately following the cover page. *See* 11th Cir. R. 30-1(e).

For paper appendices, standard commercially-available indexing tabs or their equivalent which extend beyond the edge of the page should be staggered in sequence from top to bottom along the right-hand side. Tab numbers should correspond to the original document numbers assigned by the district court and noted on the district court docket sheet. The district court docket sheet should also be tabbed and identified. *See* IOP 1 to FRAP 30.

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